

8. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY PROGRESSIVE WEST INSURANCE SHOULD NOT
BE HELD IN CONTEMPT FOR FAILING TO COMPLY WITH THE COURT'S ORDER DATED 9/4/25
PERTAINING TO DISCOVERY
FILED BY:

TENTATIVE RULING:

The court set this order to show cause hearing on why Plaintiff Progressive West should not be held in contempt for failing to comply with the Court's discovery order dated September 4, 2025. Counsel are ordered to appear via zoom or in person for the hearing on this order to show cause on January 28, 2026 at 9:00 a.m.

The court is inclined to refer this matter regarding non-compliance with the court's September 4, 2025 order, and the hearings set for on April 29, 2026, and all subsequent discovery motions to Discovery Referee, Karl P. Molineaux, for further report and recommendation and consideration of monetary and terminating sanctions pursuant to Cal. Code of Civ. Proc. §§ 2023.010, 2023.030, et. seq.

9. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: PROGRESSIVE WEST INSURANCE COMPANY
TENTATIVE RULING:

Continued to February 25, 2026 at 9:00 a.m. for supplemental briefing. See Line 7.

10. 9:00 AM CASE NUMBER: C24-01485
CASE NAME: LAFAYETTE FEDERAL CREDIT UNION VS. SAMUEL FOSTER
*HEARING ON MOTION IN RE: ENTER JUDGMENT
FILED BY: LAFAYETTE FEDERAL CREDIT UNION
TENTATIVE RULING:

Summary

Plaintiff Lafayette Federal Credit Union's Motion to Enter Judgment Against Defendant Samuel Foster Pursuant to Cal. Code of Civ. Proc. § 664.6 is **granted**.

Background

On October 9, 2026, Plaintiff Lafayette Federal Credit Union ("Plaintiff") filed a motion to enter judgment against Defendant Samuel Forster ("Defendant") pursuant to a written stipulation for settlement. The stipulation provided for payment of settlement amounts, and for entry of judgment upon default pursuant to Cal. Code of Civ. Proc. § 664.6. The Motion was supported by a declaration, evidencing the signed stipulation and settlement agreement. Proof of services shows that Defendant

was served by mail and e-mail on October 9, 2026. To date, Defendant has not filed an opposition.

Analyses

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose Plaintiff’s Motion is deemed to be his consent to the granting of the motion.

Ruling

Plaintiff Lafayette Federal Credit Union’s Motion to Enter Judgment Against Defendant Samuel Foster Pursuant to Cal. Code of Civ. Proc. § 664.6 is **granted**. Plaintiff is ordered to prepare a proposed default judgment conforming to this order and e-file with the Court within five (5) days from the date of this hearing. The Court will retain jurisdiction over this matter for enforcement purposes pursuant to Cal. Code of Civ. Proc. § 664.6.

11. 9:00 AM CASE NUMBER: C24-03326
CASE NAME: ITRIA VENTURES LLC VS. ANKIT PANCHAL
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: ITRIA VENTURES LLC

TENTATIVE RULING:

Summary

Plaintiff’s Motion for attorney’s fees & costs is **granted**.

Background

This action arises from Defendants’ breaches of written contracts, written guaranties and a settlement agreement. In 2023 Itria Ventures LLC (“Itria” or “Plaintiff”) and defendants Anderson Hospitality LLC; Ambe Hospitality LLC dba Days Inn and Suites; Yreka Hospitality LLC; Ambe Management Service, Inc.; Ankit Jagdishbhai Panchal; and Jagdishkumar Ranchhod Panchal (collectively “Defendants”) entered into four separate Receivables Sale Agreements dated March 24, 2023, June 21, 2023, August 28, 2023, and November 21, 2023 (collectively, the “RSAs”) and related guaranties that called for Itria to purchase a portion of merchant defendants’ accounts receivable, and for the individual defendants to guarantee the businesses’ compliance. Defendants subsequently breached the RSAs and guarantees.

In January 2024 the parties entered into a written Settlement Agreement (the “Settlement